

2:00 PM

LINE 3

23-CIV-01887

CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING
ERIC STUART

PRO SE

PLAINTIFF'S MOTION FOR RELIEF FROM DEEMED ADMISSION (CCP § 2033.300)

TENTATIVE RULING:

Plaintiff Charles King brings a motion for relief from deemed admissions. He filed this motion on May 5, 2026. The court DENIES his motion.

On May 19, 2026, this court heard defendants' motion to deem facts admitted and recognizing that plaintiff had filed this motion provided plaintiff with an opportunity to have the motion to deem facts admitted denied and make this motion moot. The tentative ruling issued on May 18, 2026 provided:

While plaintiff has not filed any opposition to any of the three motions, on May 5, 2026, he filed a motion for relief from deemed admissions, which is set for hearing on June 28, 2026 (plaintiff had scheduled the hearing for May 19, 2026, but the date was changed by the clerk's office due to calendar unavailability on May 19, 2026). In the proposed order, plaintiff attaches signed and verified responses to the request for admissions, which responses contain no objections. (Proposed Order Granting Plaintiff's Motion for Relief From Deemed Admissions filed May 6, 2026.) Plaintiff's motion has in the table of contents a reference to a proof of service on page 11, but no proof of service is included and there are only six pages in his motion. The proposed order does not have a proof of service and there is no stand alone proof of service in the file.

Pursuant to Code of Civil Procedure section 2033.280, subdivision (c), if a party prior to the hearing serves a response in substantial compliance with Code of Civil Procedure section 2033.220, the court does not deem the requests admitted. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.) Here, the responses are in substantial compliance: they have no objections, deny the requests, and are verified. However, there is no evidence that they have been served, another requirement. Thus, unless plaintiff demonstrates prior to the hearing by email to Department 4 and defendants that the responses have been served on defendants and he properly contests the tentative ruling and appears at the hearing (Zoom appearances are allowed), the motion is denied and the facts are deemed admitted. If plaintiff shows proof of service on defendants prior to the hearing, the motion to deem the facts admitted is denied. If he fails to follow this procedure, the motion is granted

(Min. of May 19, 2026.) No party contested the tentative and plaintiff did not show proof of service on defendants of this motion. Thus, the court granted the motion. Defendants rely on this court's order to argue that the court should deny this motion.

However, Plaintiff is seeking relief from deemed admissions in this motion and defendants do not cite, and the court is aware of no authority that prohibits the court from considering whether plaintiff is entitled to relief because of mistake, inadvertence or excusable neglect. Thus, the court considers the motion on the merits.

In this motion, plaintiff files a declaration that he reasonably believed that his former attorney had prepared and served responses, he believed that the responses applied to both defendants, and he did not intentionally failed to respond, but his failure was the result of mistake, inadvertence and excusable neglect. He attaches to the proposed order verified responses that contain no objections.

A problem with this declaration, however, as defendants point out, plaintiff has not had an attorney since February 3, 2025 and these requests for admissions were served on it by both defendants on August 13, 2025. The record reflects that on April 25, 2023, plaintiff in pro per filed his complaint. On February 29, 2024, an attorney James Arrasmith substituted in for plaintiff. On February 3, 2025, Arrasmith substituted out and King began representing himself again and has represented himself in this action since then. The proofs of service show that the requests were served on plaintiff and not an attorney. (Amended Notice and Motion to Deem the Truth of the Matters Admitted filed March 4, 2026.) Thus, plaintiff was representing himself at the time the requests for admissions were served and cannot shift the blame to an attorney.

Additionally, during case management conferences, starting in September 2025 and continuing at the conferences on December 9, 2025 and February 10, 2026, defendants brought up that plaintiff had not responded to discovery and the court and the parties discussed the lack of responses. (Min. of Sept. 30, 2025; Dec. 9, 2025; Feb. 10, 2026.) On March 24, 2026, this court granted the first of many motions to compel brought by defendants (that motion was to compel responses to request for production of documents, set one and set two).

Thus, plaintiff was on notice since September 2025 that he had not responded to discovery and thus, the court finds that his failure to provide responses prior to the hearing on the motion to deem facts admitted was not the result of mistake, inadvertence or excusable neglect. Plaintiff is held to the same standard as an attorney and must know the rules of civil procedure. As our Supreme Court has stated: "As alluded to, however, we make clear that mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

23-CIV-02884

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP VS. LIHUI BAI,
ET AL.

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP
LIHUI BAI

BRETT RAMSAUR
GABRIEL COLWELL

SPECIALLY APPEARING DEFENDANT JIMAN ZHU'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

For the reasons stated below, Defendant Jiman Zhu's "Motion to Quash Service of Summons," filed March 26, 2026, is GRANTED.

Plaintiff's June 10, 2026 Request for Judicial Notice is GRANTED. (Evid. Code, § 452, subd.(d).)

As he did back in February 2025, specially appearing Defendant Jiman Zhu once again moves to quash the service of summons upon him, contending the Court lacks jurisdiction over him. (See Code of Civ. Proc., § 418.10, subd. (a)(1).) On February 18, 2025, Mr. Zhu filed a similar Motion to Quash service of the summons, in which he argued that service of the Summons should be quashed because (1) the Court improperly authorized Plaintiff to serve Mr. Zhu by publication, because Plaintiff had not shown reasonable diligence in first seeking to serve Mr. Zhu by other means before resorting to service by publication; and (2) the Court lacks in personam (general or specific) jurisdiction over Mr. Zhu.

In May 2025, the Court granted Mr. Zhu's prior Motion to Quash (May 21, 2025 Order), agreeing with Mr. Zhu that Plaintiff had not shown adequate diligence in attempting to serve Mr. Zhu via traditional methods before seeking to serve him by publication. In granting Mr. Zhu's prior Motion to Quash, the Court declined to address the issue of general or specific jurisdiction, since doing so was unnecessary to the ruling.

In the present Motion to Quash, Mr. Zhu again moves to quash service of the summons on the same two alternative grounds: (1) that the Court lacks general or specific jurisdiction over Mr. Zhu, and (2) the Court improperly granted Plaintiff authorization to serve Mr. Zhu by publication.

As discussed below, since the Court finds that Plaintiff has not shown that Mr. Zhu had sufficient minimum contacts with California at the time this case was filed to support a finding of personal jurisdiction over him, the Court declines to address the service by publication issue.
